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Case Number: 25SMCV05446 Hearing Date: September 23, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

NIKKI RAHEJA,

Plaintiff,

v.

THE DAILY PINT, INC., et al.,

Defendants.

Case No.: 25SMCV05446

Hearing Date: September 23, 2026

[TENTATIVE] order RE:

defendant WORLDWIDE DISCOVERY

CORP.'s DEMURRER TO AND MOTION

TO STRIKE COMPLAINT

BACKGROUND

This is an employment retaliation case. Plaintiff Nikki Raheja is a bartender. She also operates her own marketing agency and dance studio. Defendant The Daily Pint, Inc. owns and operates a bar and restaurant at 2310 Pico Boulevard, called the Daily Pint. Plaintiff also alleges that Defendants Worldwide Discovery Corp. and Bar on Pico, LLC, own, operate, manage and/or control the Daily Pint.

According to the Complaint, on June 11, 2024, Plaintiff applied for an open bartending position at the Daily Pint. Plaintiff interviewed with the Bar Manager, Manny. Manny offered Plaintiff the bartending position on the spot, and Plaintiff verbally accepted the job offer. Plaintiff never formally began employment; the job offer was made and accepted but then revoked before Plaintiff's start date.

In the early morning hours of June 14, 2024, Jose Hernandez, a frequent patron and close associate of Manny, followed Plaintiff home under the pretense of talking to her about the bartending position. While at Plaintiff's home, Hernandez gave Plaintiff a drink which she believes was drugged. Hernandez made unwanted sexual advances toward Plaintiff. When Plaintiff rejected his advances, Hernandez physically assaulted Plaintiff. As Hernandez left Plaintiff's home, he threatened Plaintiff's job saying: "Good luck with the job now".

Plaintiff filed a police report against Hernandez. Santa Monica police detectives told Plaintiff that Hernandez is involved in organized criminal activity. Plaintiff claims that in making the report, she engaged in protected activity under Labor Code section 6310 because she reported unsafe working conditions that posed a direct threat to employee safety and violated occupational safety and health standards.

After filing the police report, Plaintiff returned to The Daily Pint to talk to Manny. When Plaintiff reported the sexual assault to Manny, he made clear that the job offer was being revoked in direct retaliation for Plaintiff's rejection of Hernandez's sexual advances and for Plaintiff's filing a police report. Manny specifically told Plaintiff, "you messed with my friend so it's done."

On July 7, 2024, Defendants officially revoked the job offer and hired another person for the job. Plaintiff claims that the person hired (Maggie Powers) was significantly less qualified than her.

After her police report, Plaintiff claims that Defendants' harassment escalated. Plaintiff alleges that Manny, Hernandez, and other individuals connected to Defendants' bar targeted her dance studio clients, damaging her business relationships and discouraging her clients from attending her classes. Plaintiff's claims her dance class enrollments have decreased as students and their families feared association with Plaintiff.

Defendants also damaged Plaintiff's marketing business by warning patrons not to associate or do business with her, and instructing customers and patrons, "don't talk to her, don't do business with her." As a direct result of Defendants' campaign to damage Plaintiff's professional reputation, Plaintiff's marketing agency clients declined to work with her due to fear of retaliation from Hernandez and his associates.

The harassment included threatening phone calls at all hours, including one placed from the bar's business line. Defendants and their agents called Plaintiff a "rat" and subjected her to death threats and intimidation. They also referred to her as a "Jesus freak" and mocked her Christian faith and celibate lifestyle. The new bartender (Maggie) physically assaulted Plaintiff as she was walking by the bar.

On June 16, 2025, Plaintiff's counsel made written requests to Defendants for Plaintiff's personnel records pursuant to Labor Code section 1198.5 and payroll records pursuant to Labor Code section 226(b). The statutory deadlines for production of these records have elapsed, and Defendants have failed to provide the requested records to Plaintiff.

Plaintiff alleges that the corporate Defendants are vicariously liable for all acts of harassment, retaliation, intimidation, and other unlawful conduct committed by their agents, employees, managers, representatives, patrons, and associates because they authorized, knew of, ratified, participated in, or failed to prevent the conduct.

The operative second amended complaint ("SAC") alleges claims for (1) Whistleblower Retaliation in Violation of Labor Code § 1102.5; (2) Retaliation for Reporting Unsafe Conditions in Violation of Labor Code § 6310; (3) Failure to Produce Payroll Records in Violation of Labor Code § 226(b); (4) Failure to Produce Personnel File in Violation of Labor Code § 1198.5; and (5) Interference with Prospective Economic Relations (IPER).

This hearing is on Worldwide Discovery Corp.'s demurrer and motion to strike. Worldwide argues that Plaintiff cannot prove retaliation because she has not alleged she was employed by Worldwide, and she has not alleged any protected activity. Her report about an assault was not a report of unsafe working conditions because it occurred at her home, and not at the Daily Pint. As to the claim for failure to produce employment records, Worldwide argues that it lacks sufficient detail as to where the request was made. As to the interference claim, Worldwide argues that Plaintiff has not alleged any economic relationships of which Worldwide was aware or that Worldwide engaged in any wrongful act.

As to its motion to strike, Worldwide argues that Plaintiff's claim for punitive damages fails because it has not alleged malice, oppression or fraud on the part of Worldwide. Worldwide also seeks to strike Plaintiff's request for statutory penalties, the reference to a right to sue letter that was not attached, and a placeholder for the name of Plaintiff's dance studio.

MEET AND CONFER

Code Civ. Proc. §§ 430.41 and 435.5 requires that before the filing of a demurrer or motion to strike, the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41(a), 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41(a)(2), 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).) Worldwide submits the Declaration of Danielle Little who attests that the parties met and conferred by telephone. This satisfies Worldwide's meet and confer obligations.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 (court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"); Kong v. City of Hawaiian Gardens Redevelopment Agency (2002)

108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”); *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Whistleblower Retaliation

To plead a prima facie case of “whistleblower” retaliation under Cal. Labor Code § 1102.5, Plaintiff must allege facts that, if true, satisfy the following elements: (1) Worldwide was her employer; (2) she engaged in protected activity; (3) she experienced an adverse employment action; and (4) a causal link exists between the protected activity and adverse action. (See Judicial Council of California Civil Jury Instruction 4603; *St. Myers v. Dignity Health*, 44 Cal. App. 5th 301, 314, 257 Cal. Rptr. 3d 341 (2019)).

Worldwide argues that Plaintiff has not alleged she had an employment relationship with Worldwide. The Court agrees.

Paragraph 7 of the Complaint states that “Bar Manager Manny (last name unknown) was an employee of Defendant Daily Pint with actual authority to make hiring decisions on behalf of Defendant Daily Pint, acted as Plaintiff’s supervisor, made decisions regarding the job offer extended to Plaintiff on behalf of Defendant Daily Pint, and exercised sufficient managerial control over hiring and employment decisions to bind Defendant Daily Pint. Bar Manager Manny’s actions were within the course and scope of his employment and were ratified by Defendant Daily Pint.” In other words, Plaintiff’s employment relationship was formed with Daily Pint, not Worldwide.

Of course, Plaintiff alleges that Worldwide is a “joint employer.” However, this is merely a conclusion which the Court is not required to accept as true on a demurrer.

In assessing whether there is an employment relationship, the Court looks to several factors including the payment of salary or other employment benefits and Social Security taxes, the ownership of the equipment necessary to performance of the job, the location where the work is performed, the obligation of the defendant to train the employee, the authority of the defendant to hire, transfer, promote, discipline or discharge the employee, the authority to establish work schedules and assignments, the defendant’s discretion to determine the amount of compensation earned by the employee, the skill required of the work performed and the extent to which it is done under the direction of a supervisor, whether the work is part of the defendant’s regular business operations, the skill required in the particular occupation, the duration of the relationship of the parties, and the duration of the plaintiff’s employment. (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 125.)

“Of these factors, the extent of the defendant’s right to control the means and manner of the workers’ performance is the most important.” (*Id.* at 126.) Further, “the control an organization asserts must be ‘significant,’ [citation], and there must be a ‘sufficient indicia of an interrelationship ... to justify the belief on the part of an aggrieved employee that the [alleged co-employer] is jointly responsible for the acts of the immediate employer.” (*Id.*)

Here, there is no allegation that Worldwide had any control, much less significant control, over the means and manner of Plaintiff’s work. Indeed, according to Plaintiff, she never worked at Daily Pint, because her job offer was rescinded before she started work.

Plaintiff also alleges that Worldwide is an alter ego of Daily Pint. This allegation is conclusory as well.

"Two requirements must be met to invoke the alter ego doctrine: (1) '[T]here must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist'; and (2) 'there must be an inequitable result if the acts in question are treated as those of the corporation alone.' [Citation.]" (Turman v. Superior Court (2017) 17 Cal.App.5th 969, 980-981.) In addition to these two elements, the Court of Appeal in Greenspan v. LADT, LLC (2010) 191 Cal.App. 4th 486, 512-513 specifies 15 non-exhaustive factors that one should plead in support of the alter ego doctrine. The SAC does not contain any allegations to support either element of the alter ego doctrine.

Accordingly, because Plaintiff has not alleged an employment relationship with Worldwide, the Court sustains the demurrer to her whistleblower retaliation claim.

Reporting Unsafe Conditions

Plaintiff alleges she was retaliated against for reporting unsafe working conditions in violation of Lab. Code section 6310. Worldwide argues that Plaintiff's report to the police and to Manny was not about working conditions, but about an assault that occurred at her home. In opposition, Plaintiff argues that California courts "have squarely held that complaints about dangerous individuals who have access to the workplace, including coworkers, clients, customers, patients, and other third parties, constitute protected activity under § 6310 when the employee reasonably believes the individual poses a credible threat of violence or physical harm in the workplace."

Before addressing the parties' arguments, the Court notes that Labor Code section 6310(a)(1) only applies to reports to "the division, other governmental agencies having statutory responsibility for or assisting the division with reference to employee safety or health, their employer, or their representative." Plaintiff's complaint to the Santa Monica police department, therefore, does not count as the SMPD is not a governmental agency charged with assisting the Labor Commissioner with employee safety or health. The only relevant complaint for purposes of section 6310 is Plaintiff's complaint to Manny.

Further, section 6310 provides that "no person shall discharge or in any manner discriminate against any employee" so the statute seems to extend beyond employers. The court has not found any California authorities as to the meaning of "person" in section 6310. Federal courts (interpreting section 6310) have held that it also extends to individual supervisors. (De La Torre v. Progress Rail Servs. Corp., No. CV 15-4526-FMO (GJSx), 2015 U.S. Dist. LEXIS 100784, 2015 WL 4607730, at *5 (C.D. Cal. July 31, 2015); Boone v. Carlsbad Cmty. Church, No. 08-CV-0634 W (AJB), 2008 U.S. Dist. LEXIS 44675, 2008 WL 2357238, at *7 (S.D. Cal. June 6, 2008). But the Court has not found any cases (federal or otherwise) that have applied section 6310 to "persons" other than employers or supervisors.

As discussed above, the Complaint does not contain sufficient allegations to support the conclusory claim that Worldwide is Plaintiff's employer. Further, while Plaintiff alleges that Worldwide was her supervisor (SAC ¶ 3), this conclusory allegation is not supported by any facts.

In the context of FEHA, a "supervisor" is someone who has authority to hire, transfer, promote, assign, reward, discipline or discharge other employees, has the responsibility to act on other employees' grievances or effectively to recommend action on grievances; or the responsibility to direct other employees' daily work activities. (CACI No. 2525.) The alleged supervisor's exercise of this authority or responsibility must not be "merely routine or clerical, but must require the use of independent judgment." (Id.) There are no facts alleged in the Complaint that Worldwide had any of these powers or responsibilities.

Accordingly, the Court need not address whether the complaint to Manny was about worker safety because section 6310 does not apply to Worldwide, under the current allegations in Plaintiff's complaint. Therefore, the Court sustains the demurrer to the section 6310 claim.

Failure to Produce Payroll/Personnel Records

Plaintiff has sued Worldwide for violations of California Labor Code §§ 226(b) and 1198.5. Section 226(b) requires an employer to comply with a request by a current or former employee to inspect or receive “a copy of records pertaining to their employment.” The failure by an employer to comply within 21 days of the request “entitles the current or former employee or the Labor Commissioner to recover a seven-hundred-fifty-dollar (\$750) penalty from the employer.” (Id. § 226(f).) The employee may also seek injunctive relief. (Id.)

Comparably, California Labor Code section 1198.5 affords “[e]very current and former employee . . . the right to inspect and receive a copy of the personnel records that the employer maintains relating to the employee’s performance or to any grievance concerning the employee.” (Cal. Lab. Code § 1198.5(a).) An employer is required to make these records available within “30 calendar days from the date the employer receives a written request.” Id. § 1198.5(b). The failure to comply with this requirement, similar to section 226, entitles the requesting party to “recover a penalty of seven hundred fifty dollars (\$750) from the employer” and to bring an action for injunctive relief to obtain compliance with this section, and may recover costs and reasonable attorney’s fees in such an action.” (Id. § 1198.5(k)—(l).)

Because the Court concludes that the SAC does not sufficiently allege that Worldwide is Plaintiff’s employer, neither of these claims can be asserted against Worldwide. Accordingly, the Court sustains the demurrer to the third and fourth causes of action.

Interference with Prospective Economic Advantage

Intentional interference with prospective economic advantage has five elements: (1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by the defendant’s action. (Korea Supply, 29 Cal.4th at pp. 1164–1165.)

The first element has two parts: (1) an existing economic relationship that (2) contains the probability of an economic benefit to the plaintiff. Here, Plaintiff has sufficiently alleged the existence of an economic relationship between herself and her dance/marketing clients. She is not required to provide their specific names at the pleading stage. (See *Ramona Manor Convalescent Hosp. v. Care Enters.*, 177 Cal. App. 3d 1120, 1127-28 (1986) (the specific name of the third party need not be alleged to recover for an interference claim, although that party must be “identified in some manner”))

As to the second element, Plaintiff alleges that “Defendants” had knowledge of her business relationships and economic interests because her dance studio is located 500 feet from the bar, and “Plaintiff operated her businesses in the same community where Defendants conduct business.” While these allegations are thin, the Court concludes they are sufficient at the pleading stage.

As to the third element, Plaintiff alleges that “Defendants” interfered with her prospective economic relations “by spreading Plaintiff’s name throughout The Daily Pint establishment and instructing customers and patrons ‘don’t talk to her, don’t do business with her.’” Defendants also allegedly engaged in “harassment and intimidation tactics that created fear among Plaintiff’s clients and students of potential gang retaliation from Jose Hernandez and his associates.”

The only persons identified by name as engaging in this harassment are Manny and Maggie. However, there are no specific facts alleged to suggest they are the agents of Worldwide. Rather, they are identified as employees of Daily Pint. And their alleged connection to Worldwide is via Plaintiff’s conclusory allegations of alter ego or joint employer. As discussed above, the allegations are insufficient to support a finding that Worldwide is a joint employer or alter ego.

Accordingly, because Plaintiff has not alleged facts to support the third element, the Court sustains the demurrer as to the interference claim as well.

CONCLUSION AND ORDER

Based on the foregoing, the Court SUSTAINS the demurrer with 20 days' leave to amend. The Court denies the motion to strike as moot.

DATED: September 23, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court